

Mivtza TEFILLIN

Frequently Asked Shaylos



MARKING
50 YEARS
OF
MIVTZA
TEFILLIN



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As we enter the fiftieth year since the Rebbe launched mitvza tefillin, increasing our koch in this mitvza and spreading its reach even more within our communities, it is an appropriate time to refresh our memory and familiarize ourselves with the relevant halachos. Certain details can either make it or break it, determining whether one is yotzei the mitzvah or not.

On the other hand, we must also be familiar with what is not me'akev (at least bedi'eved). This way, if it is not

possible to have the other person fulfill the mitzvah in the best manner possible, we can at least ensure he is yotzei the mitzvah, especially if he is a *karkafta delo manach*.

”בטח ידוע למר
אז איך קאָך זיך
במבצע תפילין”
(אגרות קודש חכ”ו ע’ ק)



1 What are some of the more common issues one must be aware of to ensure that tefillin are kosher?

Kashrus of the Batim

It is a *halachah lemoshe misinai* that the tefillin must be square, i.e., their length must be equal to their width. This applies both to the bayis itself, to the titura, and to the stitches. If the squareness of any of these components has become damaged, the tefillin are possul until they have been repaired.¹

There is no need to measure the tefillin on a daily basis to ascertain that they are square.² However, if it appears that the squareness has become compromised (e.g., if the batim of the shel rosh are warped or if the corners have rounded), they must be brought to a sofer before they may be used again.

The tefillin do not become possul if some of the black paint on the batim has peeled off.³

Kashrus of the Retzu'os

It is a *halachah lemoshe misinai* that the outside of the retzu'os must be black.⁴ If some of the black paint has rubbed off (as is common where the retzu'ah is tied into a knot), new paint should be applied. It may be helpful to carry some tefillin paint with your tefillin for use in such a

situation.

Bedi'eved, the retzu'os are kosher as long as their general appearance is black (even if small rubbed-off spots can be detected when examining them closely).⁵

Recently, certain tefillin have been sold where the retzu'os are covered with plastic-like black film (instead of paint), which is halachically questionable. As such, one should ensure that his retzu'os are indeed entirely made of leather.

Kashrus of the Parshiyos

Min hadin, tefillin that have been established once as being kosher do not need to be checked. Nevertheless, it is proper to check them at regular intervals, as they can become ruined from sweat.

A pair of tefillin that is not worn regularly must be checked twice in seven years. Similarly, if there is room to believe that its kashrus has become compromised (for example, if the bayis has been punctured, become wet, or been exposed to excessive heat), they must be checked.⁶

Some have the minhag of checking their tefillin once a year if possible (during the month of Elul),⁷ and the Rebbe highly encouraged this practice.⁸

2 Must one make sure the person removes his watch before donning the shel yad?

The need to avoid a chatzitzah only applies to the batim and the initial circuit

of the retzu'os around the head and arm, and not to the additional circuits around the arm and finger.⁹ Accordingly, although it is preferable to remove watches and the like before wrapping the retzu'os around the arm, if the person desires to leave them on, he may do so.¹⁰

3 How careful must one be to ensure that the tefillin are in the center of the head (for example, if the person adjusts them himself)?

The tefillin shel rosh must be positioned in the center of the head, corresponding to the area between the eyes.¹¹ In his *Siddur*, the Alter Rebbe adds that they must be perfectly centered. Since the parshiyos of *kadesh* and *vehayah ki yevi'acha* must be to the right and the parshiyos of *shema* and *vehayah im shamo'a* must be to the left, in Rashi tefillin (where the parshiyos are inserted in order), the central division (dividing *vehayah ki yevi'acha* and *shema*) must be centered, and if it is not one is not yotzei.

(If the tefillin are gasos, one has some more leeway—up to 5-6 mm in total—because the divisions between the individual batim are wider. However, if one is using dakos, where the divisions are narrower, one has a maximum of 1-2 mm leeway.)

Care must be taken to ensure that the shel rosh (as well as the shel yad) is in the correct spot, for otherwise he is not

1 Alter Rebbe's Shulchan Aruch, 32:59.

2 Machatzis Hashekel, 32:54.

3 See Alter Rebbe's Shulchan Aruch, 33:5.

4 Ibid., 33:4.

5 Piskei Teshuvos, 33:6.

6 Alter Rebbe's Shulchan Aruch, 39:11.

7 Matei Ephraim, 581:10.

8 See Sefer Hasichos 5748, Vol. 2, p. 610.

9 Alter Rebbe's Shulchan Aruch, 27:7.

10 Piskei Teshuvos, 27:9.

11 Alter Rebbe's Shulchan Aruch, 27:18.



yotzei.¹² However, although one should try to make sure the shel rosh is as centered as possible, if it is not perfectly centered the person is still yotzei.

An important note (relevant to this and similar questions): In the all-too-common situation where a person wishes to don the tefillin by himself, one must tactfully make sure he is yotzei at least *me'ikar hadin*.

4 What is the lowest spot on the head where the shel rosh may be placed?

The front edge of the titura must be no lower than the hairline, i.e., the point from where the hair actually *grows* from the head (and its back edge must be no higher than the end of where the soft spot (fontanelle) on a baby's skull is located).¹³ One who is bald or whose hairline has receded follows his original hairline. However, if the bottom edge is slightly below the hairline, the person is still yotzei.

5 If the shel rosh is too big on a person's head and is slipping down, and one does not have time to adjust it and make it smaller, may he suffice with holding the tefillin in place over the person's forehead?

The retzu'os of the shel rosh must be tightened around the head so that the tefillin will lie in their correct place independently. If they are loose and manual intervention is required for the tefillin to remain in their correct location, he is not yotzei.

6 What is the correct spot of the keshet of the shel rosh, and how careful must one be to ensure it remains in that spot?

The knot of the shel rosh must be situated at the point where the skull meets the neck.¹⁴ Lechatchilah the keshet should be positioned at the top of the recess where the skull meets the neck. However, it may be positioned higher as well, as long as the tefillin can be tightened properly. Similarly, one is yotzei if the keshet is lower, as long as it is completely above the posterior hairline.¹⁵

Additionally, the keshet must be centered and not move to the right or left.¹⁶ Here as well, although one should try to make sure the keshet is as centered as possible, if it is not perfectly centered the person is still yotzei.

7 Is one yotzei if the retzu'os are inverted?

Care must be taken to ensure that the black side of the retzu'os faces outward, as this is *me'akev* as well. However, this only applies to the initial circuit of the retzu'os around the head and arm, and not to the additional circuits around the arm and finger and the straps hanging down from the shel rosh.¹⁷

8 In the event that the retzu'os of the shel yad are not long enough, in order of importance, what are the most critical elements without which the person is not yotzei?

The most critical elements when wrapping the retzu'os of the shel yad are to tighten the initial circuit around the arm, stretch it down along the arm until

the middle finger, and wrap three circuits around the finger.¹⁸ If the retzu'ah is longer, the next element to add would be the seven circuits around the arm. Finally, one can wrap additional circuits around the bicep and/or hand to form a shin and the like.¹⁹

9 Is one yotzei if the yud of the shel yad has unraveled?

The kesharim of the shel rosh and shel yad are *halachah lemoshe misina*,²⁰ and if they unravel, the tefillin are *posul* and may not be used until they are tied properly.

10 Ashkenaz tefillin have a loop that requires one to turn the retzu'ah in the opposite direction of Sefard tefillin (inward instead of outward). If one only has Ashkenaz tefillin, should he wrap it in the Ashkenaz manner, or should he wrap it according to our minhag?

The direction in which one wraps the retzu'os—inward or outward—is not crucial to the mitzvah, and either way is valid. As such, if one only has Ashkenaz tefillin, he may either wrap the retzu'ah inward (as it is made to be used), or he may wrap it outward, as is our minhag (see below, question 13, for exact instructions how to wrap the retzu'ah outward in such a case).

However, one should not reverse the tefillin with the keshet on the outside to make it easier to wrap the retzu'ah outward.²¹ Similarly, however one chooses to wrap the retzu'ah, he must make sure it will properly secure the tefillin upon the kibores.

¹² *Kitzur Shulchan Aruch*, 10:3. "It is as if the tefillin are still in their bag"—*Pri Megadim*, *Mishbetzos Zahav*, 27:6. *Mishnah Berurah*, 27:33.

¹³ *Alter Rebbe's Shulchan Aruch*, 27:14.

¹⁴ *Ibid.*, 27:15.

¹⁵ *Piskei Teshuvos*, 27:19.

¹⁶ *Alter Rebbe's Shulchan Aruch*, 27:16.

¹⁷ *Ibid.*, 27:17, 19.

¹⁸ *Ibid.*, 27:11.

¹⁹ *Piskei Teshuvos*, 27:17 and fn. 156.

²⁰ *Alter Rebbe's Shulchan Aruch*, 32:79.

²¹ *Piskei Teshuvos*, 27:7.

11 When should a second brachah be recited on the shel rosh?

If a person spoke between donning the shel yad and the shel rosh, he should recite the brachah of מצות תפילין על the shel rosh. If the interruption pertained to the donning of the tefillin, a second brachah is not recited. However, lechatchilah one should avoid making any interruption unless absolutely necessary.²²

It should be noted that according to the *Kitzur Shulchan Aruch*,²³ those who always recite a second brachah on the shel rosh should recite it in an undertone.

12 Must a person say something while wearing tefillin in order to fulfill the mitzvah?

The moment a person is completely wearing tefillin, he is yotzei the mitzvah. Needless to say, to enable him to fulfill the mitzvah of shema, he should, at the very least, recite the first possuk of shema. Even better would be to recite until the end of the first parshah.²⁴ If possible, he should recite all three parshiyos, which will also enable him to fulfill the mitzvah of mentioning yetzias mitzrayim.²⁵

(It should be noted that since the mitzvah of mentioning yetzias mitzrayim can be fulfilled independently from parshas vayomer,²⁶ he can be yotzei [at least bedi'eved] if we explain to him the kavanah of tefillin, which includes remembering yetzias mitzrayim—see below).

Additionally, since mitzvos require kavanah,²⁷ the person should have in mind

at least the basic kavanah of tefillin. If possible, one should explain the kavanah of tefillin in detail as written in *Shulchan Aruch*²⁸ (that Hashem has commanded us to write the four parshiyos of tefillin that contain the unity of His name and yetzias mitzrayim, and so on). If this is not possible, one should at least explain the general kavanah of *shibud halev vehamoach*.

Bedi'eved, he is yotzei even if the general kavanah was not explained to him, because the conscious act of donning tefillin to fulfill the mitzvah of Hashem can also be considered as kavanah.²⁹

13 What is the best way to put on tefillin with a left-handed person if one only has right-handed tefillin available (or vice versa)?

The *Kitzur Shulchan Aruch*³⁰ discusses a case of sha'as hadechak, where a left-handed person only has access to right-handed tefillin, or vice versa, and he cannot change the knot. In such a situation, if he puts them on as they are with the ma'abarta facing upward and the

bayis facing downward, then the yud and the knot will be facing outward. Instead, he should invert the tefillin and place them with the ma'abarta facing downward and the bayis facing upward, so that the yud and the knot will be opposite the heart.

If, however, the tefillin he has available have the knot made in the Chabad style, a third alternative is possible, and should indeed be followed:

The knot should be pulled away from the right side of the bayis and brought close to the left side. Next, the tefillin should be placed on the right arm. The long end of the retzu'ah should then be turned away from the body (as in a U-turn) and wrapped around the bicep once. Finally, the retzu'ah should be wrapped over the (somewhat loose) knot and over the bicep, thereby tightening the knot so that it will touch the bayis.³¹

This method allows the knot to face the heart and the bayis to face downward, as usual.

14 If a person writes with his left hand but performs all other activities with his right hand, upon

²² Alter Rebbe's Siddur.

²³ 10:4.

²⁴ See Alter Rebbe's *Shulchan Aruch*, 58:1.

²⁵ See *ibid.*, 67:1.

²⁶ See *ibid.*

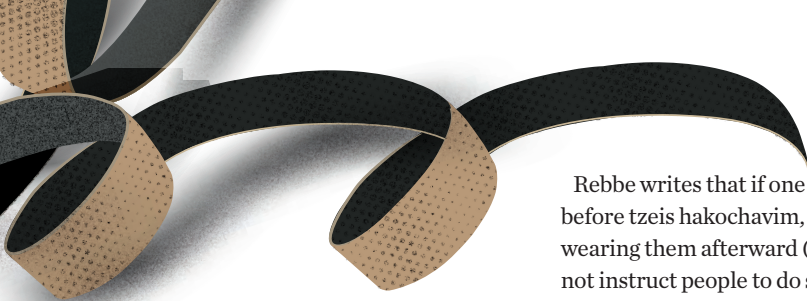
²⁷ *Ibid.*, 60:5.

²⁸ See *ibid.*, 25:11.

²⁹ See *Piskei Teshuvos*, 60:7.

³⁰ 10:7.

³¹ *Nesivim Bisdeh Hashlichus*, Vol.1, p. 45.



which hand should the tefillin be placed?

The Alter Rebbe rules³² that a person who writes with his left hand and performs all other activities with his right hand should don tefillin on his *right* hand.

The Alter Rebbe continues that in the opposite case, where one writes with his right hand and performs all other activities with his left hand, even if he also writes with his left hand, he should don tefillin on his *left* hand. This is certainly the case if he manipulates both hands equally.

However, the Tzemach Tzedek³³ rules differently: In the first case—if he writes with his left hand and performs all other activities with his right hand—he should don tefillin on his *left* hand. In the second case—if he writes with his right hand and performs all other activities with his left hand—he should don tefillin on *both* hands (first on one and then on the other).

When putting on tefillin with someone on a one-time basis and a decision must be reached immediately, simply follow the Alter Rebbe's opinion. It should be noted, however, that for one who dons tefillin regularly, a rov should be consulted.

15 May one put on tefillin with another person during bein hashmashos?

Min hatorah, tefillin may be donned at night as well. However, Chazal prohibited donning tefillin at night. The reason is because since night is when people sleep, they were concerned one might forget and fall asleep while wearing tefillin.³⁴

In his *Shulchan Aruch*,³⁵ the Alter

Rebbe writes that if one donned tefillin before tzeis hakochavim, he may continue wearing them afterward (but we may not instruct people to do so as halachah lemaaseh). From the Alter Rebbe's wording it is clear that the prohibition begins from tzeis hakochavim (and not from shkiah).³⁶

However, in his Siddur the Alter Rebbe writes that one may not don tefillin from shkiah and onward.³⁷

From the above it appears that although lechatchilah one should certainly not don tefillin after shkiah, one who hasn't donned tefillin yet that day should don them as long as it is still bein hashmashos.

16 How should tefillin be placed on a person with a cast?

There is a machlokes as to whether one must ensure there is no chatzitzah between one's skin and the tefillin. Although the din follows the stringent opinion, the lenient opinion may be followed if one cannot remove the chatzitzah and will otherwise be unable to don tefillin at all. In such a case, he should not recite a brachah.³⁸

This would similarly apply to a person who cannot don tefillin on his hand because of a wound. In such a case, he should don tefillin over a cloth or garment (or, in our case, over the cast) without a brachah.

Although usually both the shel yad and shel rosh may remain uncovered when they are worn, in a case where the shel yad is not worn on the actual skin (as in our case), it must be covered.³⁹

The need to avoid a chatzitzah only applies to the batim and the initial circuit of the retzu'os around the head and arm, and not to the additional circuits around the arm and finger.⁴⁰ Accordingly, if the

cast is only on the lower arm, it does not pose a problem.

17 Are there any halachic considerations when putting on tefillin with a patient in a hospital?

Two issues that may be relevant are (1) the need to ensure cleanliness of the body; (2) the prohibition of hesach ha'daas—averting one's attention from the tefillin.

Cleanliness of the Body

A person who cannot be careful to remain clean when wearing tefillin (at least for the amount of time it takes to recite shema) is exempt from wearing tefillin (even if he is not enduring stomach pains).⁴¹ If he can remain clean for such a length of time, he should don tefillin and say shema. If even this is not possible, he may still don tefillin and remove them immediately. However, he should not make a brachah in this case.⁴²

Contemporary poskim have ruled that one who is using a catheter may still learn and daven while wearing tallis and tefillin, despite being unaware as to when his body becomes unclean.⁴³

Averting Attention From the Tefillin

An individual who is suffering from an illness and his mind is unsettled is exempt from donning tefillin, due to the obligation to focus on the tefillin and not avert his attention from them. However, he is allowed to don them if he desires. If his mind is settled, he is obligated to don tefillin even though he is ill.⁴⁴

18 Is there a purpose in putting on tefillin with someone who is unconscious?

One should not put on tefillin with such a person, just as one should not put

32 27:9.

33 *Shu"t Tzemach Tzedek, Orach Chaim*, 4:2 and 12:3. See also *Yagdil Torah* (N.Y.), issue 38.

34 *Alter Rebbe's Shulchan Aruch*, 30:1.

35 30:2.

36 See also *ibid.*, 30:4.

37 In the Hebrew: אחר תחלת השקיעה. This differs from his position in *Shulchan Aruch*, where he writes (30:4): ושקיעה עליו. חמה, ודו"ק צאת הכוכבים.

38 *Alter Rebbe's Shulchan Aruch*, 27:7.

39 *Ibid.*, 27:8.

40 *Ibid.*, 27:7.

41 *Ibid.*, 38:1.

42 *Piskei Teshuvos*, 38:1.

43 See poskim referenced in *Piskei Teshuvos*, 78:1, fn. 1.

44 *Alter Rebbe's Shulchan Aruch*, 38:2. *Pri Megadim, Eshel Avraham*, 38:1. *Mishnah Berurah*, 38:5.

on tefillin with someone who is sleeping.⁴⁵ However, if his relatives want to put on tefillin with him because they feel he might sense them and this might strengthen him, they may put on tefillin with him for a short time, provided that his body is completely clean.⁴⁶

19 Should one put on tefillin with a person who believes he is Jewish if you suspect or know that he is not?

Due to the complexity of the situation, one should discuss the matter with a rov.

20 What should be done if a non-Jew genuinely wants to put on tefillin or purchase a pair of tefillin?

The Rambam writes⁴⁷ that we do not refrain a non-Jew from performing a mitzvah (that is not one of the sheva mitzvos) if he wishes to fulfill it to gain reward. However, the Radvaz writes⁴⁸ that “I am inclined to rule stringently” that they should not be allowed to perform mitzvos that require holiness and purity, such as tefillin and mezuzah, and this is indeed the halachah.

21 May one put on tefillin with a woman if she insists on doing so?

Women are exempt from donning tefillin, because it is a *mitzvas asei she’hazman grama* (as they are not worn on Shabbos and yom tov). Furthermore, a woman should not wear tefillin even if she wishes to be machmir.⁴⁹

Another element is the fact that this is an idea endorsed by the Reform

movement, and for this reason alone it must be avoided.⁵⁰

Poskim also quote the Targum Yonasan on the possuk לא יחי' כלי גבר על אשה, according to which this issur applies to a woman who wears tzitzis or tefillin.⁵¹

22 May one put on tefillin with a Yid who converted to another religion, rachmana litzlan?

The Alter Rebbe rules⁵² that a *mumar* (which includes both an individual who disobeys the entire Torah and one who commits an aveirah out of spite) and a *mossur* are possul to write tefillin. Even though they are commanded to don tefillin, since they do not believe in mitzvos, they are possul to write them.

Since they are commanded to don tefillin, it is certainly a great zechus to be mezakeh them with this mitzvah, especially if this will remove them from the category of a *karkafta delo manach*.

23 What standard of tefillin should one encourage his mekuravim to purchase?⁵³

The Rebbe points out in numerous places that if a person is willing to spend what it takes to obtain the best quality item begashmiyus, all the more so should this apply beruchniyus. If we explain bedarkei noam the greatness of mitzvos in general and of tefillin in particular, and how we must give Hashem the best of what we have, words that come from the heart will certainly enter the heart and accomplish their goal.

As far as exactly what type of tefillin one should encourage his mekuravim to purchase, there are no rules in this regard, and one must determine what is

appropriate for each particular individual. However, there are a few general pointers one should keep in mind:

1. Tefillin should be kosher lechatchilah, and one should not rely on leniencies that are kosher only bedi’eved. (Many tefillin on the market are only kosher bedi’eved, or are outright possul.)

2. One should ensure that the parshiyos were written by a certified sofer, and that they were checked afterward to ensure they were written properly.

3. Although peshutim are cheaper than gasos, gasos are more durable and last much longer. For one planning to don tefillin on a daily basis, purchasing gasos can be a better investment, because due to the delicate nature of peshutim, they might become possul without him realizing it. The same applies to lower quality gasos, which are of questionable kashrus.

4. If purchasing peshutim, one should purchase those with “*knaqayim*” (where the ktzitzah is sewn into the titura and not just glued onto it), as this is me’akev according to halachah.

5. If purchasing gasos, one should make sure the batim have a reliable hechsher (that cover the *tzvi’ah* as well), as there are a variety of halachic issues that can apply to them (e.g., *mechitzos mezuyafos*—external grooves that do not correspond to the internal divisions between the batim).

Once one has established the standard of tefillin he is looking to purchase on behalf of a given baal habos, the appropriate information should be obtained from the vendor, to ensure the tefillin he is buying indeed meets that standard. 

45 *Shu”t Shevet Hakehosi*, 4:24.

46 *Piskei Teshuvos*, 38, fn. 24.

47 *Melachim*, 10:10.

48 In his commentary to the *Rambam*, loc. cit. Regarding mezuzah, see also *Rama*, *Yoreh Dei’ah*, 291:2.

49 *Alter Rebbe’s Shulchan Aruch*, 38:3.

50 See *Piskei Teshuvos*, 38:3, from *Gilyonei Hashas* (from R. Yosef Engel) to *Eiruvim* 96a.

51 See *Kaf Hachaim*, 38:9.

52 39:1.

53 For more on this subject, see *Compass* Issue 13, “Are You Getting What You Bargained For: A Closer Look at Inexpensive Stam.”

